

Tentative Rulings for Department 502

Begin at the next page

(20)

Tentative Ruling

Re: ***Mann vs. Jaguar Land Rover North America, LLC, et al.***
Superior Court Case No. 25CECG05145

Hearing Date: May 27, 2026 (Dept. 502)

Motion:

Tentative Ruling:

To deny. (Code Civ. Proc. § 1281.2)

Explanation:

Plaintiffs Jasneet and Harjit Mann filed the present action regarding the purchase of a 2023 Land Rover Range Rover, which plaintiffs allege came with manufacturer warranties. Problems with the vehicle ensued which form the basis of the instant complaint for damages. Plaintiffs brought four causes of action against defendants Jaguar Land Rover North America, LLC ("JLRNA"), and Haron Motor Sales, Inc., for breach of express warranties afforded through the Song-Beverly Act; breach of implied warranties afforded through the Song-Beverly Act, violation of section 1793.2 of the Civil Code, and negligent repair.

Defendant JLRNA moves to compel arbitration pursuant to plaintiffs' purported agreement to do so in the Owner's Handbook, which purportedly was placed in the vehicle's glovebox.

In moving to compel arbitration, defendant must prove by a preponderance of evidence the existence of the arbitration agreement and that the dispute is covered by the agreement. The party opposing the motion must then prove by a preponderance of evidence that a ground for denial of the motion exists (e.g., fraud, unconscionability, etc.) (*Rosenthal v. Great Western Fin'l Securities Corp.* (1996) 14 Cal.4th 394, 413-414; *Hotels Nevada v. L.A. Pacific Ctr., Inc.* (2006) 144 Cal.App.4th 754, 758; *Villacreses v. Molinari* (2005) 132 Cal.App.4th 1223, 1230.) Unless there is a dispute over authenticity, the mere recitation of the terms is sufficient for a party to move to compel arbitration. (*Sprunk v. Prisma LLC* (2017) 14 Cal.App.5th 785, 793.)

A trial court is required to grant a motion to compel arbitration "if it determines that an agreement to arbitrate the controversy exists." (Code Civ. Proc. § 1281.2) However, there is "no public policy in favor of forcing arbitration of issues the parties have not agreed to arbitrate." (*Garlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1505) Thus, in ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute. (*Mendez v. Mid-Wilshire Health Care Center* (2013) 220 Cal.App.4th 534, 541.)

Defendant submits that there is an arbitration provision housed in the Owner's Manual, which was purportedly found in the vehicle's glovebox. A copy of a document titled "Owner's Handbook and Warranty Information" is attached as Exhibit A to the

declaration of James Mayo, counsel for defendant. Plaintiff objects for a lack of foundation. The objection is sustained. Nothing in counsel's declaration provides foundation to tie Exhibit A to the plaintiffs.

Defendant fails to lay sufficient foundation to establish that the Owner's Manual attached to the declaration was actually received by plaintiffs, is the document that covers this subject vehicle, or is the warranty from which plaintiffs' claims arise. On reply, defendant suggests that authentication is not necessary. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218.) However, the issue here is not the authenticity of a signature (*Id.* at pp. 217-219.) There is no signature. The challenge here is whether this owner's manual is one that plaintiff received. Nothing in the declaration of James Mayo establishes the conclusion that the terms upon which defendant relies to compel arbitration, as submitted, were ones given to, and accepted by, plaintiffs. Accordingly, the unsupported claim that the Owner's Manual was placed in the subject vehicle's glovebox is insufficient to show the existence of a valid arbitration agreement between the parties.

Even had the document been admissible, nothing in the Owner's Manual suggests that a contract was created, even if it had been placed in the glovebox. Essential elements of contract formation are that the parties capable of contracting, and their consent. (Civ. Code, § 1550.) Generally speaking, one must be a party to an arbitration agreement to be bound by it or invoke it. (*Westra v. Marcus & Millichap Real Estate Investment Brokerage Co., Inc.* (2005) 129 Cal.App.4th 759, 763.) Strong public policy in favor of arbitration does not extend to those who are not parties to an arbitration agreement, and a party cannot be compelled to arbitrate a dispute that he has not agreed to resolve by arbitration. (*Buckner v. Tamarin* (2002) 98 Cal.App.4th 140, 142.)

Terms of a contract are ordinarily to be determined by an external, not an internal standard; the outward manifestation or expression of assent is the controlling factor. (*Norcia v. Samsung Telecommunications America, LLC* (9th Cir. 2017) 845 F.3d 1279, 1284.) Where an offeree does not know that a proposal has been made to him, this objective standard does not apply. (*Id.* at p. 1285, citing *Windsor Mills, Inc. v. Collins & Aikman Corp.* (1972) 25 Cal.App.3d 987, 993.) An offeree, regardless of apparent manifestation of his consent, is not bound by inconspicuous contractual provisions of which he was unaware, contained in a document whose contractual nature is not obvious. (*Ibid.*) This principle of knowing consent applies with particular force to provisions for arbitration; if a party wishes to bind in writing another to an agreement to arbitrate future disputes, such purpose should be accomplished in a way that each party to the arrangement will fully and clearly comprehend that the agreement to arbitrate exists and binds the parties thereto. (*Id.* at pp. 993-994.)

Plaintiffs state in their declarations that they had no notice from either the dealership or JLRNA that there was any agreement to arbitrate in the Manual, and that their failure to opt out constituted an agreement. They only became aware of the arbitration provision through JLRNA's motion to compel arbitration. (Mann Decls., ¶¶ 4, 5.) Aside from the failure of JLRNA to present any evidence that the arbitration agreement was actually found in the subject vehicle when it was purchased by plaintiffs, JLRNA submits no authority providing that quietly placing an arbitration agreement somewhere in a vehicle, unbeknownst to the buyer, is effective to form a contract.

Plaintiffs simply did not expressly assent to any agreement in the Owner's Manual or act in a manner in which their failure to opt out was intended to accept the arbitration agreement.

Based on the above, the court finds that the arbitration provision in the Owner's Manual is not an enforceable written agreement to arbitrate. (*Norcia v. Samsung Telecommunications America, LLC, supra*, 845 F.3d at p. 1286 [finding no contract formed by silence of consumer as alleged assent to arbitration agreement within Product Safety & Warranty Information brochure]; *Windsor Mills, Inc. v. Collins & Aikman Corp., supra*, 25 Cal.App.3d at pp. 993-994 [finding that where a plaintiff was not advised of the arbitration provision and had no knowledge of the provision until after the demand for arbitration, there is no agreement to arbitrate, regardless of outward manifestations of apparent assent by acceptance of the object of the contract].) Even if there had been some indication of assent, because of the nature of the agreement is for arbitration, the party sought to be compelled to arbitration must have demonstrated knowledge or expectation of the provision. All of these factors are absent.

JLRNA's reliance on the Federal Arbitration Act ("FAA") does not save the motion. Even the FAA requires contract formation. (See *Kindred Nursing Centers Ltd. Partnership v. Clark* (2017) 581 U.S. 246, 248, 244-255.) An arbitration agreement is a contract. Given that no contract formation is shown here, there is no need to address plaintiffs' unconscionability arguments. The motion must be denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 05/26/26.
(Judge's initials) (Date)